

Walker et al. v. Sheffield Bronze Powder Co. Ltd.

16 O.R. (2d) 101

ONTARIO

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HIGH COURT OF JUSTICE

R. E. HOLLAND, J.

27TH APRIL 1977.

Negligence -- Occupier's liability -- Brothers, eight and nine, coming on defendant's premises on Saturday while plant closed -- Used barrels containing small amount of flammable chemicals stored against wall of building -- Older boy dropping lighted match into barrel -- Explosion burning both boys -- Whether occupier negligent.

Negligence -- Contributory negligence -- Nine-year-old boy dropping lighted match into barrel containing flammable chemical -- Resulting explosion burning boy and younger brother -- Standard to be applied based on boy's background, knowledge and intelligence -- Whether boy guilty of contributory negligence.

The two infant plaintiffs, brothers aged eight and nine, came on to the defendant's premises on a Saturday while the plaintiff's paint supply distributing business was not in operation. The defendant stored used barrels against the outside walls of its building. It was not possible to empty these barrels completely and they contained small amounts of flammable chemicals. The older brother removed a bung from one of the barrels and put a lighted match close to or in the air hole with the result that there was a flash of fire and practically an immediate explosion. Both boys were severely burned. In an action for damages for personal injuries, held, there should be judgment for the plaintiffs.

The boys would fall into the category of trespassers, or, because of the conduct of the occupier, licensees. However, in the case of children ordinary negligence law applies. The injury having occurred, the test is whether or not this sort of injury was foreseeable on the part of the occupier and, if it was, whether he should have guarded against it. One must ask whether the precautions taken by the occupier to guard against the risk of injury were reasonable considering the use that he knew or should have known would be made of the property by people coming on the property without permission. An occupier is not required to take extravagant precautions. He must match the precautions to the risk. Unfortunately, too often the occupier shelters behind a policy of insurance rather than a chain link fence. Here the danger and injury were foreseeable. The occupier knew of the flammable and explosive nature of the contents of the stored barrels and should have foreseen the danger of injury. Furthermore, the precautions taken were inadequate. The only precaution was the direction to the employees to tighten the bungs with a bung wrench and store the barrels top to the wall. It was foreseeable that these instructions would not be strictly followed. It was also foreseeable that children would play around the barrels and would try to investigate their contents. The danger could have been eliminated by interior storage, by erecting a fence around the storage area or, better still, by fencing off the property. To leave the barrels out in the open was asking for trouble. In the circumstances, the defendant was negligent and this negligence caused or contributed to the accident.

As to contributory negligence, one must not apply the objective standard of care of the reasonable man but must rather look at the child, his background, knowledge and intelligence and ask whether this child, in these circumstances, was negligent. This boy was of average intelligence. A nine and a half-year-old child of average intelligence would be guilty of negligence in crossing a street in the face of traffic against a red light. Even with the limitations imposed upon him by his age he could and should foresee the consequences of his action. On the other hand, while he knew that he was not supposed to play with matches and would know that if he held a match too close to the flame he

would burn his fingers, and while he should be expected to appreciate that if he held a match to paper or cloth it would burn, he did not appreciate the risk of fire or explosion inherent in putting a match close to or in the bung-hole of this barrel. The reasonable adult would appreciate this risk but it would place too high a standard on this boy to hold that he should appreciate the risk. Hence, he was not guilty of contributory negligence.

[Robert Addie & Sons (Collieries), Ltd. v. Dumbreck, [1929] A.C. 358, disaprvd; British Railways Board v. Herrington, [1972] A.C. 877; Veinot v. Kerr-Addison Mines Ltd., [1975] 2 S.C.R. 311, 51 D.L.R. (3d) 533, 3 N.R. 94; Mitchell et al. v. C.N.R. Co., [1975] 1 S.C.R. 592, 46 D.L.R. (3d) 363, 6 N.S.R. (2d) 440, 1 N.R. 344; Bartlett et al. v. Weiche Apartments Ltd. (1974), 7 O.R. (2d) 263, 55 D.L.R. (3d) 44, folld; Yachuk et al. v. Oliver Blais Co., Ltd., [1949] 3 D.L.R. 1, [1949] 2 All E.R. 150, [1949] A.C. 393, [1949] 2 W.W.R. 764; revg [1946] S.C.R. 1, [1946] 1 D.L.R. 5; revg [1945] O.R. 18, [1945] 1 D.L.R. 210; revg [1944] O.W.N. 412, [1944] 3 D.L.R. 615; Lynch v. Nurdin (1841), 1 Q.B. 38, refd to]

ACTION for damages for personal injuries.

D. J. Brown, for plaintiffs.

J. W. O'Brien, Q.C., for defendants.

R.E. HOLLAND, J.:-- An explosion occurred on premises occupied by the defendant on August 31, 1974, at about 7.30 in the evening. As a result the two infant plaintiffs, Robin and Randy Walker, were seriously burned. This action is brought on their behalf for general damages and by the mother for their out-of-pocket expenses and for her loss of income incurred as a result of staying home to look after the children.

The defendant's premises are located on the south side of

Stephenson Ave. in Toronto. To the east there is a hydro right of way, to the south a railroad track and to the west another factory area and then a public park used primarily as a children's playground.

The defendant company employs 50 or so personnel and operates a business which packages and distributes paint supplies. It is engaged in "breaking bulk". Chemicals are mixed and delivered to the defendant company in 45-gallon barrels. The chemicals are then transferred into cans for the wholesale and retail market. The cans are appropriately labelled with the name of the product and any required caution or warning.

When the barrels have been emptied, or nearly so, they are stored outside of the buildings next to the wall or walls of the buildings and in an area covered with a corrugated iron roof.

The neighbourhood, generally, is residential and the property occupied by the defendant and that by the defendant's neighbour, immediately to the west, is the only factory area in the immediate neighbourhood. The defendant many years ago caused to be constructed an iron fence separating its property from Stephenson Ave. Entry to the plant is gained through iron gates. At the time of the accident the plant operated Monday to Friday and the gates were always left open, even when the plant was not in operation. The accident happened on a Saturday. The gates, as usual, were wide open. There was no fence for some 75 ft. between the park and the premises lying to the west of the defendant's property. There was no fence between these neighbouring properties. Entry could also be gained to the defendant's property from the south across the railroad right of way and it is quite clear to me that children and adults, although warned away from time to time during actual working hours, were permitted to wander free at other times. It seems obvious to me, as it should be to anyone, that the children from the park would be inclined to play around the buildings of the defendant. That they did in fact play there is supported by the evidence of the two infant plaintiffs and their mother.

No warning or no trespassing signs were posted on or around the property of the defendant.

On the evening of the accident, which was bright and dry, the two infant plaintiffs, Randy age nine and a half and his brother Robin age eight, after having finished their supper, went to check up on some rabbits owned by a neighbour and found that some had escaped. One of the rabbits was seen on the premises of the defendant. The boys followed this rabbit, using the open front gate as their means of access. The rabbit hid under or in the vicinity of the barrels stored against the wall of the defendant's building. Randy had a propensity to play with matches. He had played with matches on many occasions and had been caught playing with matches by his mother and punished. This punishment had failed to cure him of his habit. He had a number of boxes of matches on his person on this evening and he said that he found a paper match-folder lying in the defendant's yard. Apparently losing interest in the rabbit hunt, he amused himself by lighting a match. He said that he was standing close to the pile of barrels, that there was a pool of liquid in the area, that he was distracted, burnt his fingers and dropped the match, the liquid caught on fire, the fire spread immediately to one of the barrels and an explosion occurred. His evidence in this regard is supported in part by the evidence of his brother. This is really the only direct evidence of the cause of the explosion. We do know that a barrel did, in fact, explode and that as a result of this explosion the two infant plaintiffs were terribly burned.

The evidence as to the happening of the explosion, other than the testimony of the two boys, is circumstantial. The first police officer on the scene, Constable Andres, found Randy some 30 ft. away from the stacked barrels and west of the barrels in a position that he marked on the photograph, ex. 3. Robin was also west of and some 30 ft. away from the barrels but lying south of Randy. The police officer found nine used paper matches and one full book of matches under and about even with the edge of the corrugated iron roof. He marked the location of these matches on the photograph, ex. 3. He also found a 45-gallon barrel with both ends blown out and a scorch mark on the ground close to the matches. This scorch mark was described

by another witness who arrived at the scene, Robert Scarlett, as being adjacent to the barrel and elliptical in shape some four to five feet away from the pile of barrels. Scarlett said that the folder of matches had been partially used. These barrels contained two holes in the top, one an air hole with a screw-in bung and one a hole through which the barrel is filled or emptied, also containing a screw-in bung. Scarlett found an air hole bung some feet away from the barrel. The bung fitted the bung-hole in the barrel and he replaced the bung. He also found a metal pipe in the area which he described as being three to four inches long and about three-quarters of an inch in diameter. This pipe was four to six feet away from the drum in a westerly direction. He said that he saw a trail of used matches extending from the area of the explosion north and then west to the adjoining property and north to the boundary line with the park. The barrel in which the explosion occurred had contained "liquid sandpaper". Liquid sandpaper is a liquid composed of mineral spirits, metholine chloride, methol hydrate and zylene. These chemicals are solvents of one kind or another. The product is used to clean and prepare painted surfaces for further painting. It is flammable. It has a flash point of 68degrees to 73degrees F. and as a result when it is retailed the container must be labelled "flammable" and the flammable symbol must be superimposed on the caution symbol. The general manager's instructions to the employees of the defendant were to secure the bung-holes, using a special bung wrench, and to store the used barrels against the walls of the building in a horizontal position with the bung-holes against the wall. The evidence indicates that from a practical point of view it is not possible to fully empty the barrels when transferring the contents. The barrel is left with a pint or less of liquid when stored as an empty barrel. After the explosion one of the investigating police officers checked some of the barrels and found the bungs tight. The ground in the area where the explosion occurred is sandy and porous.

The statement of claim was amended at trial. Prior to delivery of the original statement of claim a conference had been held between the then solicitor for the plaintiffs, Mrs. Walker and the two children. It may be of some significance that in para. 7 of the original statement of claim the

following allegation occurs:

The children secured some matches and in the curiosity about the barrels, they opened a bung of one such barrel and lighted a match to see what, if anything, was in it.

In para. 8 of the original statement of claim the following further allegation is made:

When the children put the lighted match close to the open bung hole of the barrel, there was a terrific explosion and both the plaintiff children were violently blown into the air and landed some thirty feet west of the barrel ...

It appears that the evidence of the two children has varied over the years. I am quite satisfied that they are not in any way consciously fabricating evidence. I have come to the conclusion that the barrel that exploded, prior to the explosion, was lying on the ground in a horizontal position some four or five feet from the stack of barrels against the wall. How it got there I do not know and I am not prepared to make a finding that the children moved the barrel, which would weigh 50 lbs. or so, to its position where the explosion occurred. Quite obviously the air hole bung had been removed prior to the explosion. If properly secured, it would have been difficult, if not impossible, to remove the bung without some leverage. The leverage required may have been applied by the pipe found in the area following the explosion. I find that Randy removed the bung. Either it was loose or he used the pipe or some other lever to free it. It is the sort of thing that children could well be expected to do. The barrels were not all stored against the wall with the top to the wall. This is demonstrated in the photograph, ex. 3, which shows one barrel at least with the top showing.

The evidence indicates that any spilt liquid sandpaper would evaporate within 15 minutes to half an hour.

Randy, as I have found, removed the bung. Then, as was his habit when he had nothing better to do, started to play with matches. After having watched a number of matches burn,

probably prompted by curiosity, he put a match close to or in the air hole with the result that there was a flash of fire and practically an immediate explosion.

Duty of care

These boys would fall into the category of trespassers or, because of the conduct of the occupier, licensees. Fortunately we appear to be no longer required to differentiate between the two. Historically, the only duty owed to a trespasser was as enunciated by Lord Hailsham in *Robert Addie & Sons (Collieries), Ltd. v. Dumbreck*, [1929] A.C. 358 at p. 365:

Towards the trespasser the occupier has no duty to take reasonable care for his protection or even to protect him from concealed danger. The trespasser comes on to the premises at his own risk. An occupier is in such a case liable only where the injury is due to some wilful act involving something more than the absence of reasonable care. There must be some act done with the deliberate intention of doing harm to the trespasser, or at least some act done with reckless disregard of the presence of the trespasser.

Addie is no longer the law of England. In *British Railways Board v. Herrington*, [1972] A.C. 877, the Court developed what has been described as the duty of "ordinary humanity". The occupier must act reasonably. What is reasonable depends on the nature and degree of the danger and the difficulty and expense of guarding against it.

In *Veinot v. Kerr-Addison Mines Ltd.*, [1975] 2 S.C.R. 311, 51 D.L.R. (3d) 533, 3 N.R. 94, Laskin, C.J.C., Spence J., and Dickson, J. (with whom Laskin, C.J.C., and Spence, J., concurred), adopted the concept of ordinary humanity above referred to. Martland, J., with whom Judson, Ritchie and de Grandpre, JJ., agreed, after reviewing the authorities, said, at pp. 338-9 S.C.R., p. 545 D.L.R.:

I have reviewed these recent cases, at perhaps unnecessary length, because we find in the *Herrington* and *Cooper* cases an extension of the scope of the duty owed by an occupier toward

a trespasser beyond the limits defined in the Addie case. This extension has permitted the elimination of the theory of implied licence, a device which has been used in the past, especially in cases involving children, to avoid the strict application of the Addie case. I am in agreement with, and would favour the adoption of this approach, which recognizes that, in certain circumstances, the conduct of an occupier of land may require him to take steps to enable a person who has entered on his land, without his actual consent, to avoid a danger of which the occupier is aware. The question is as to what is the extent of such a duty.

And at p. 341 S.C.R., pp. 546-7 D.L.R.:

The effect of these cases might be summarized as being that an occupier who knows of the existence of a danger upon his land which he has created, or for whose continued existence he is responsible, may owe a duty to persons coming on his land, of whose presence he is not aware, if he knows facts which show a substantial chance that they might come there. This is, in essence, the duty stated by Dixon C.J. in the Cardy case. Such duty, when it exists, is limited, in the case of adults, to a duty to warn. In the case of children something more may be required. The existence of a duty will depend on the special circumstances of each case.

In *Mitchell et al. v. C.N.R. Co.*, [1975] 1 S.C.R. 592, 46 D.L.R. (3d) 363, 6 N.S.R. (2d) 440, Laskin, J., for the majority, dealt with the duty of care owed by an occupier to a child and referred with approval to English and American authority, at p. 616 S.C.R., p. 379 D.L.R.:

I am the less reluctant to find an actionable breach of a duty of care in the present case when I consider how broadly other courts in sister jurisdictions have viewed the duty owing by an occupier to children, even where they are classified as trespassers. *British Railway Board v. Herrington*, [1972] A.C. 877, and *Pannett v. P. McGuinness Ltd.*, [1972] All E.R. 137, are illustrative English cases dealing with liability to trespassing children, a situation to which the Occupiers' Liability Act of 1957 does not apply.

In appraising the American case law, Prosser on Torts (1971, 4th ed.), at p. 366 states that "child trespasser law is merely ordinary negligence law", and that "in any case where the child could recover if he were a trespasser, he can recover at least as well when he is a licensee or an invitee on the premises".

Laskin, J., talks about "a foreseeable risk of harm" and does not talk about traps or unusual dangers. Mitchell was discussed by the Ontario Court of Appeal in Bartlett et al. v. Weiche Apartments Ltd. (1974), 7 O.R. (2d) 263, 55 D.L.R. (3d) 44. The judgment in Veinot was not referred to although it had been delivered a short time before. Jessup, J.A., with whom Brooke, J.A., concurred, put the duty to a licensee as follows at p. 267 O.R., p. 48 D.L.R.:

It is to take reasonable care to avoid foreseeable risk of harm from any unusual danger on the occupier's premises of which the occupier actually has knowledge or of which he ought to have knowledge because he was aware of the circumstances. The licensee's knowledge of the danger goes only to the questions of contributory negligence or volenti.

Arnup, J.A., at p. 270 O.R., p. 51 D.L.R., put the question as follows:

"Did there exist, at the time and place of the accident, a combination of circumstances, known to the defendant, which taken together created an unusual danger, resulting in a foreseeable risk of harm to children in the position of this infant plaintiff?"

I conclude from the authorities that, at least when we are dealing with children, we are no longer required to categorize the child as a trespasser or licensee or strain to find an allurement. We apply ordinary negligence law. The injury having occurred we ask ourselves whether or not this sort of injury was foreseeable on the part of the occupier and whether, if it was foreseeable, he should have guarded against it. We must ask ourselves whether the precautions taken by the occupier to guard against the risk of injury were reasonable considering

the use that he knew or should have known would be made of the property by people coming on the property without permission. An occupier is not required to take extravagant precautions. He must match the precautions to the risk. Unfortunately, too often the occupier shelters behind a policy of insurance rather than a chain link fence.

Foreseeability of danger and adequacy of precautions

I have no doubt that the danger and injury were foreseeable. The occupier knew of the flammable and explosive nature of the contents of the stored barrels and should have foreseen the danger of injury. Furthermore, in my view, the precautions taken were inadequate. The only precaution was the direction to the employees to tighten the bungs with a bung wrench and store the barrels top to the wall. It was foreseeable that these instructions would not be strictly followed. It was also foreseeable that children would play around the barrels and would try to investigate the contents. The danger could have been eliminated by interior storage, by erecting a fence around the storage area or, better still, by fencing off the property. To leave the barrels out in the open was asking for trouble. In the circumstances, in my opinion, the defendant was negligent and this negligence caused or contributed to the accident.

Contributory negligence

It was pleaded that the two children were engaged in a joint venture. The evidence does not support this allegation and there was no negligence on the part of Robin. Was Randy negligent in removing the bung from the barrel and in putting a match in or close to the bung-hole? One must not apply the objective standard of care of the reasonable man but must rather look at the child, his background, knowledge and intelligence and then ask one's self whether this child, in these circumstances, was negligent. Randy comes from a broken home. He was apparently mistreated by his father. He failed grade 2. In 1973-74 he was in grade 3 and did not do well but passed his year. His mother describes him as bright and described him as "a rough sort of boy who got into all sorts of scrapes". He was apparently often involved in accidents almost

to the extent that he was seeking to injure himself. The mother went to grade 10. Dr. Carr of the Department of Psychiatry of the Hospital for Sick Children thought that he was of average intelligence and described him as being of superior intelligence to Robbie who is described as possessing average intelligence. He seemed bright enough to me in the witness-box. Clearly, a nine and a half-year-old child of average intelligence would be guilty of negligence in crossing a street in the face of traffic against a red light. That child even with the limitations imposed upon him by his age could and should be able to foresee the consequences of his action. But is the same true in this case? He certainly knew that he was not supposed to play with matches but continued to do so. Clearly, he would know that if he held a match too close to the flame he would burn his fingers and, I think, he should be expected to appreciate that if he held a match to paper or cloth the paper or cloth would burn. This question of contributory negligence has given me considerable concern. I think it is a borderline case. I have come to the conclusion that Randy did not appreciate the risk of fire or explosion inherent in putting a match close to or in the bung-hole of this barrel. The reasonable adult would appreciate this risk but I think it would place too high a standard on this boy to hold that he would appreciate the risk. I draw some comfort for this conclusion from the decision of *Yachuk et al v. Oliver Blais Co., Ltd.*, [1949] 3 D.L.R. 1, [1949] 2 All E.R. 150, [1949] A.C. 393. In that case, boys aged nine and seven obtained some gasoline from a service station. They were going to light torches from the gasoline and in the course of their play all of the gasoline caught on fire or exploded and they were severely burned. The trial Judge found the infant plaintiff 75% responsible [[1944] O.W.N. 412, [1944] 3 D.L.R. 615]. The Court of Appeal for Ontario allowed the appeal and held that the defence of contributory negligence failed [[1945] O.R. 18, [1945] 1 D.L.R. 210]. On appeal to the Supreme Court of Canada [[1946] S.C.R. 1, [1946] 1 D.L.R. 5] two Judges were of the view that the action should be dismissed. Three of the Judges agreed that there was negligence on the part of the defendant's salesman and two of these thought that the Judge was right in his finding of contributory negligence, whereas one agreed with the decision of the Court

of Appeal. In the result, the order of the trial Judge was restored. On appeal to the Privy Council it decided that the decision of the Ontario Court of Appeal was correct. The Privy Council applied the principle stated by Lord Denman, C.J., in *Lynch v. Nurdin* (1841), 1 Q.B. 38, as did the Court of Appeal for Ontario, as follows:

The most blameable carelessness of his servant having tempted the child, he [the defendant] ought not to reproach the child with yielding to that temptation. He has been the real and only cause of the mischief. He has been deficient in ordinary care; the child, acting without prudence or thought, has, however, shown these qualities in as great a degree as he could be expected to possess them. His misconduct bears no proportion to that of the defendant which produced it.

In this case, Randy knew that the defendant manufactured paint and he knew that paint would burn but I do not think that, at his age, he should be expected to anticipate that he could cause a fire or an explosion by using a match as he did.

I have, therefore, come to the conclusion that the defendant is solely responsible for the injuries and damages claimed. That being the case, it is not necessary for me to deal with the claim of the defendant for contribution and indemnity from Randy in connection with any damages payable to Robin.

Assessment of damages

Robin Walker

The two children were taken from the scene of the accident to Toronto East General Hospital and were transferred the next day to the Hospital for Sick Children. Robin suffered second and third degree burns to 45% of his body. He underwent skin graft operations on September 2nd and October 7th. He was finally discharged home with splints and pressure dressings on November 2nd. He has been left with very severe and permanent scarring. The extent of the scarring is shown in the series of photographs that were taken in the evening of one of the trial days and were filed as an exhibit. I saw Robin in my Chambers

and he showed me his scars. Counsel agreed that the photographs are helpful in that they indicate the area of scarring but counsel frankly agreed with me that the scarring appeared more severe to the eye than indicated by the photographs. The injury will not affect Robin's employability but the scarring will be a source of continuing embarrassment for the rest of his life. I assess his general damages, bearing in mind the extreme initial pain, the pain of the treatment and his long life expectancy, at \$30,000.

Randy Walker

Randy was more seriously injured than his brother. He suffered second and third degree burns to 55% of his body. He suffered fractures of the second and fifth metacarpals of the right hand and a wound in his right groin. He was operated on on October 7, 1974, and discharged from hospital on November 6th, with splints and pressure dressings. He required further hospitalization in December of 1974, and an operation on December 30th. He was discharged again on January 14, 1975. He was hospitalized again for an operation in 1976. He will probably require future operations. He has been left with severe scarring. As in Robin's case, photographs were taken and were filed as an exhibit. These photographs did not adequately depict the severe residual scarring. He has a bad scar on the left side of his face. This will be even more obvious in the future because this scarred area will not grow hair. He has bad scarring to both hands and particularly the right. He has severe scarring to the body and legs. This scarring may have some effect on his employability. It will be difficult to keep some of the scarring free of dirt and this may lead to infection. I assess his general damages, again bearing in mind the severe pain from the injury and treatment, his permanent disability and long life expectancy, at \$60,000.

Martti Walker

Mrs. Walker had to stay home to look after her children. The children certainly needed care in the early days after their return from hospital. Mrs. Walker had not been steadily employed. I cannot be exact in my calculation of her loss of

income and assess her damages for loss of income at \$1,000.

The out-of-pocket expenses were agreed to for Robin at \$8,911.56 and for Randy at \$16,061.45.

For the above reasons there will be judgment against the defendant for the following sums:

Robin Walker
\$30,000.00

Randy Walker
60,000.00

Martti Walker
25,973.01

The judgment will carry costs.

Judgment for plaintiffs.